

# FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

HMM CO. LTD, *Respondent*

**DOCKET NO. 22-20**

Served: November 30, 2022

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**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge.*

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**ORDER GRANTING COMPLAINANT'S CONSENT MOTION FOR AN EXTENSION OF TIME TO  
COMPLETE DEPOSITIONS OF FACT WITNESSES**

On November 29, 2022, Complainant MSRF Inc. ("MSRF") filed a motion seeking an extension of time ("Extension Motion") of 30-days to complete the depositions of fact witnesses. Complainant asserts that Respondent HMM Co. Ltd ("HMM") consents to this motion. The reasons for seeking an extension are that the parties need more time to resolve issues regarding identifying, providing, and reviewing electronically stored information ("ESI"), and preparing for depositions after reviewing the ESI. Complainant adds that, "[t]he upcoming holiday season will also reduce the number of work days available for counsel to review documents and prepare witnesses." Extension Motion at 1.

The Scheduling Order provided a deadline of December 16, 2022, to complete the depositions of fact witnesses. Scheduling Order at 2. To address the parties' concerns about the production and review of ESI in preparation for depositions during the holiday season, the deadline for the completion of fact witness depositions will be extended; the remainder of the Scheduling Order is not impacted by this extension. Good cause having been stated, it is hereby ordered that Complainant's motion seeking an extension of time to complete depositions of fact witnesses is **GRANTED** to January 16, 2023. The parties should plan to meet all the other deadlines in the scheduling order and are cautioned that extension requests, even if agreed to between the parties, may not be granted.



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Linda S. Harris Crovella  
Administrative Law Judge